

Defendant's motion to dismiss is granted. The matter is dismissed without prejudice pursuant to CCP Section 583.420 and Rule of Court 3.1342(e). The Court finds that Plaintiff has failed to diligently prosecute the case.

ALEC NEAL; ET AL. vs. FORD MOTOR COMPANY; ET AL.
Case No. CU24-07267

FORD's Motion for Summary Adjudication re: Fraudulent Inducement

TENTATIVE RULING

Defendant FORD MOTOR COMPANY ("FORD") moves for summary adjudication in its favor of the cause of action for fraudulent inducement within Plaintiffs ALEC NEAL, KRISTY LEE NEAL, and TODD GLENN NEAL's complaint. Summarized as relevant, Plaintiffs allege that Defendant failed to disclose material information about defects in the engines in its 2017 Ford Focus vehicles; Plaintiffs were therefore misled by omission into purchasing a 2017 Ford Focus (the "Vehicle") with a defective engine.

The court has not received opposition to the motion.

Legal Standard. A defendant may move for summary adjudication as to one or more causes of action within an action if the defendant contends that the cause of action has no merit and the motion will completely dispose of the cause of action. (Code Civ. Proc., § 437c, subd. (f)(1).) A cause of action has no merit when one or more of its elements cannot be established or there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (o).) A motion for summary adjudication proceeds in all procedural respects as a motion for summary judgment. (Code Civ. Proc., § 437c, subd. (f)(2).) A summary adjudication motion is therefore properly granted where the evidence in support of the moving party would be sufficient to sustain a judgment in his favor on the relevant cause of action or issue and his opponent does not show facts sufficient to present a triable issue of fact. (*Parker v. Twentieth Century-Fox Film Corp.* (1970) 3 Cal.3d 176, 181 (*Parker*).) The motion is not to be granted where any triable issue of material fact exists. (*Ibid.*) The affidavits of the moving party are strictly construed, and doubts as to the propriety of summary judgment should be resolved against granting the motion. (*Ibid.*) Reasonable inferences from the evidence must be drawn in the light most favorable to the opposing party. (*Syngenta Crop Protection, Inc. v. Helliker* (2006) 138 Cal.App.4th 1135, 1155.)

Affidavits, declarations, admissions, answers to interrogatories, depositions, and matters judicially noticed may all support a motion for summary adjudication, provided they contain admissible evidence. (Code Civ. Proc., § 437c, subds. (b)(1), (d), (f)(2).) Allegations in a party's own pleadings may not satisfy deficiencies in evidence. (Code Civ. Proc., § 437c, subd. (p).) Allegations in an opposing party's pleadings may be considered evidence, however. (*Parker, supra*, 3 Cal.3d at p. 181.)

A defendant may rely on a plaintiff's factually devoid discovery responses to meet its initial burden of proof and shift the burden to the plaintiff to set forth specific facts proving the existence of a triable issue of material fact. (*Andrews v. Foster Wheeler LLC* (2006) 138 Cal.App.4th 96, 107; *Union Bank v. Superior Court* (1995) 31 Cal.App.4th 573, 590.)

Additionally, a defendant does not meet its burden of showing a plaintiff cannot establish an element merely by pointing out the absence of evidence; the defendant must show that the plaintiff both does not possess and cannot reasonably obtain evidence. (*Zipusch v. LA Workout, Inc.* (2007) 155 Cal.App.4th 1281, 1286-1287.)

Fraudulent Inducement in a Song-Beverly Consumer Warranty Act Action. The elements of a cause of action for fraudulent inducement are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the material fact to the plaintiff; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would not have acted as he did if he had known of the fact; and (5) damages sustained as a result of the concealment or suppression of the fact. (*Graham v. Bank of America, N.A.* (2014) 226 Cal.App.4th 594, 606.)

FORD establishes that Plaintiffs have no proof of any element of this cause of action by reference to Plaintiffs' factually devoid discovery responses, which is sufficient to carry its burden of showing that Plaintiffs both lack and cannot reasonably obtain evidence. (*Collin v. CalPortland Co.* (2014) 228 Cal.App.4th 582, 587-588; Declaration of Trina M. Clayton in Support of Motion at ¶¶ 5-6, Exhibits C-E [discovery responses].) Plaintiffs write in response to special interrogatories asking them to state the facts supporting their claim for fraudulent inducement that FORD should refer to the complaint, to the Vehicle's repair history, and to Plaintiffs' document production. The complaint is not evidence. The Vehicle's repair history does not show how FORD knew of and concealed a defect, only (at most) that there was a defect. Plaintiffs' document production is the sales contract for the Vehicle and some repair history documents, which also do not show how FORD knew of and concealed a defect.

Plaintiffs do not raise a triable issue in response, having filed no opposition.

Conclusion. FORD's unopposed motion for summary adjudication is granted.

VIDA LARA; ET AL. vs. WINNRESIDENTIAL CALIFORNIA L.P.; ET AL.
Case No. CU25-06641

Plaintiff VIDA LARA's Motion to Compel Further Responses to Special Interrogatory No. 1 Propounded on Defendants WINNRESIDENTIAL L.P. and LLAM REALTY MANAGEMENT INC.

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